

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

In this matter, the court finds that Defendant's responses to requests one, and three through seven, are substantially compliant.

The response to request two offers a legitimate objection, in that the request does assume that Defendant in fact applied for the credit account.

Disposition

The court denies Plaintiff's Motion.

The court will file the Order.

**12. 9:00 AM CASE NUMBER: L25-10487
CASE NAME: MIDLAND CREDIT MANAGEMENT INC. VS. THU QUACH
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT
FILED BY:
*TENTATIVE RULING**

Defendant filed a Motion to Set Aside Default Judgment, on 2/27/26, that was originally scheduled for 5/12/26. On that date, this court found Defendant had not provided any notice of the Motion to the Plaintiff, continued the Motion to 7/21/26, and ordered Defendant to provide notice to the Plaintiff.

As of this writing, though the Court Clerk provided notice of the hearing to Plaintiff, there is still no evidence that Defendant has provided any notice of the Motion to Plaintiff.

Disposition

This Motion will be dropped.

13. 9:00 AM CASE NUMBER: L25-12718

CASE NAME: WELLS FARGO BANK, N.A. VS. EVA SANTIAGO

*HEARING ON MOTION FOR AN ODR DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLTF'S REQ FOR ADMISSIONS AS ADMITTED FILED BY PLTF ON 04/07/2026

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," in Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel of Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

14. 9:00 AM CASE NUMBER: L25-14278
CASE NAME: JPMORGAN CHASE BANK N.A. VS. SUZANNE TRAN
***HEARING ON MOTION IN RE:**
FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where she was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, she did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$8,775.25, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$8,775.25.